

International Efforts Relating to Cyberspace Laws and Cyber Crimes

- ❑ International Efforts Related to Cyberspace Laws
- ❑ Council of Europe (COE) Convention on Cyber Crimes

E-commerce is used in electronic system and involves conducting electronic business and other commercial activities. It is used to buy and sell goods, provides services and create great awareness among the corporate business sector and also includes the customer care services.

3 different kinds of E-commerce models.

Bricks and Mortar – companies which have presence only in the physical world and are without a commercial internet presence.

Examples : **Coffee shops, Bank branches, grocery stores, and clothing outlets at the mall.**

Bricks and Clicks – companies that combines a physical offline presence along with the one on the online.

Examples : **Walmart.**

Dot-coms – who operate exclusively on the online.

Examples : **Amazon, Flipkart, IndiaMART, BookMyShow.**

As the e-commerce transactions are increasing rapidly, there is a need to have uniform proper effective laws at the national and international levels.

International Efforts Related to Cyberspace Laws

- United Nations Commission on International Trade Law
- The Organization for Economic Co-operation Development (OECD)
- World Trade Organization (WTO) and E-commerce
- The World Intellectual Property Organization and E-commerce
- The Internet Corporation For Assigned Names and Numbers
- Asia-Pacific Economic Cooperation
- Some Important Agencies In The US Connected With E-commerce Law and Policy
- Internet Law and Policy Forum
- International Chamber Of Commerce
- Singapore Electronic Transactions Guidelines

United Nations Commission on International Trade Law

UNCITRAL(United Nations Commission on International Trade Law) was established by UN in the year 1996 to harmonise the laws on international trade and is a main legal body of the UN which works to create accessible united commercial laws.

The commission consists of 36 member States by the general assembly to represent the world's various geographic regions of principal economic and legal system.

UNCITRAL is supposed to focus on law reforms and create model commercial laws to be followed by various countries in the world.

- Conventions, model laws and rules which are acceptable worldwide.
- Legal and legislative guides and practical recommendations.
- Updated information on case laws and enactments of uniform commercial law.
- Technical assistance in law reform projects.
- Regional and national seminars on uniform commercial law.

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- The commission has established six working groups to perform work on a range of areas including international sale of goods, international commercial arbitration, infrastructure development, most importantly for ecommerce.
- They propagate the use of paperless communications in the year 1996.
- It has created a model law on e-signature in the year 2001.
- It is expected that future-commerce works will concentrate on electronic contracting, online dispute settlement and a convention to remove legal barriers to the development of e-commerce in international trade system.
- Based on the recommendations of the UNCITRAL Model law on E-commerce, 1998 and the UNCITRAL Guide to enactment, India has enacted the Indian Information Technology Act 2000.
- Micro, Small and Medium-sized Enterprises, Arbitration and Conciliation / Dispute Settlement, Investor-State Dispute Settlement Reform, Electronic Commerce, Insolvency Law, Judicial Sale of Ships

The Organization for Economic Co-operation Development (OECD)

- The OECD developed out of the organization for European Economic Cooperation which administrated American and Canadian aid to Europe after the world war II.
- It was first established in 1961 and now has thirty member countries and keeps good and active relationships with seventy more countries.
- OECD, objects and goals are to build strong economies among its members countries.
- It also tries to improve market system, expand free rate, and contribute to the development in industrialised and developing countries.
- OECD helps in the creation of international instruments, decisions and recommendations where multilateral contracts may create progress for individual countries in a free globalised economy.
- It also holds and develops international statistical standards and coordinates statistical activities with other international agencies.

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- OECD has developed its policy in telecommunications infrastructure and services, taxation, consumer protection, network security, privacy and data protection and for helping emerging markets and developing economies.
- OECD action plan for e-commerce is endorsed by its members in 1998.
- Benefits of E-commerce in OECD
- Promoting the use of privacy-enhancing technologies and user education and awareness about online privacy issues.
- Studying the effects
- Of e-commerce on cross-border trade in financial service, on contract law and on electronic delivery of insurance products.
- Studying access to high-bandwidth information and communication technologies at affordable costs in rural as well as in urban areas;
- Researching the needs for, and constraints to, capacity for trade faced by developing countries: and
- Disseminating its work on e-commerce to member and non-member countries through other international organisation.

World Trade Organization (WTO) and E-commerce

- The world Trade Organization (WTO) is an international organization that deals with the rule of trade between nations.
- It was formed in the year 1995 as a successor of the General Agreement on Traffic and Trade (GATE).
- The WTO has over 130 members nations. More than 75% of these nations are either developing or the least-developed countries.
- Many trade negotiations under the GATT and WTO have led to agreements b/w government on various aspects of trade, tariffs, telecommunications and financial services.
- These agreements under the GATT and WTO helps to formulate the ground rules for international trade and commerce.
- The decision at the conference of the WTO are made by the entire member nations and the decisions are taken generally by consensus.
- The ministerial conferences of member nations generally meets every two years which are hosted by the WTO.

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- ✓ WTO is an important organization to deal with the international trade and commerce matters.
- ✓ One of the important functions of the WTO is to handle trade disputes b/w nations.
- ✓ It also monitors the national trade policies of the member nations.
- ✓ WTO also provides technical assistance and training for the developing countries and work together with other international organizations.

Trade related issues arising from global e-commerce (ministerial meeting WTO in 1998)

1. How do existing WTO agreements have the impact on e-commerce?
2. Are there any weaknesses or omissions in the law which need to be remedied?
3. Are there any new issues not now covered by the WTO system on which the meeting want to negotiate new discipline?

Since the meeting in 1998 many issues related to e-commerce have been examined by WTO council in the areas of services, goods, intellectual property and trade and development.

The World Intellectual Property Organization (WIPO) and E-commerce

- The WIPO is an important international organization which promotes and protects the original works in the filed of art, science, and technologies.
- WIPO is one of the 16 specialized agencies of the UN.
- It administers 23 treaties dealing with different aspects of intellectual property protection connected with both industrial protection and the protection of copyright.
- It has more than 170 member states.
- In the year 1883, Paris Convention for the Protection of Industrial Property was formed to protect industrial property internationally.
- But now, WIPO which was formed 1970 , has become a specialized agency on the protection of industrial property and intellectual copyrights.
- WIPO from the year 1974 has become a specialized agency of the UN and has the mandate to administer intellectual property matters recognized by the member states of the UN.

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- WIPO's main function is to develop international standards for the protection of intellectual property in keeping with the rapidly growing advances in technology and business.
- Harmonise national intellectual property legislation and procedure;
- Provide service for intellectual applications for industrial property rights;
- Exchange intellectual property information;
- Provide legal and technical assistance to developing and other countries;
- Facilitates the resolution of private intellectual property disputes; and
- Marshal information technology as a tool for storing, accessing and using valuable intellectual property information. In the year 1996, WIPO has framed the WIPO copyright rules, 1996, for the purposes of regulating protection of intellectual property and the copyright.

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- In connection with e-commerce, WIPO has framed the “Digital Agenda” to properly respond to the confluence of the internet, digital technology and the intellectual property system through international negotiation and discussion.
- WIPO is formulating new methods
- Integrate developing countries into the internet environment through such tools as the use of WIPO net and the electronic delivery of information and services;
- Rethink how intellectual property law works in Internet transaction and examine emerging new norms in this respect;
- Facilitate creation of online system to resolve disputes;
- Coordinate and ensure the development of efficient and consistent response to common concern across national and multi-sectoral boundaries.

The Internet Corporation For Assigned Names and Numbers

- The ICANN is a technical coordination body for the internet.
- It was established in a year 1998 by a broad coalition of the internet business, technical, academic, user's communities.
- It has assumed duties and responsibility for a set of technical functions previously performed under the US government contract by other groups.
- It is a non-profit, private sector corporation.
- It is supposed to develop policy through private sector, to bottom-up, and to develop consensus based means and the ICANN welcomes the participation of any interested internet user, business or any other organisation.
- ICANN coordinates the assignment of identifiers that must be globally unique for the internet to function.
- Internet domain names;
- IP address number;
- Protocol parameter and port numbers, and also coordinates the stable operation of the Internet's root server system.
- The ICANN work in future is likely to address several key issues including institutional reform, the participation of internet users in the policy making process, the establishment of new top-level domain, and bring amendments to ICANN's domain name dispute resolution process.

Asia-Pacific Economic Cooperation

- Asia-Pacific Economic Cooperation (APEC) was established in the year 1989 in response to the every growing interdependence of Asia-Pacific Economies.
- Though it began as an informal ministerial level dialogue group with only 12 members but now it has grown to include 25 member economies comprising about 2.5 billion people.
- APEC chair rotates annually among members and hosts an annual ministerial meeting of foreign and economic ministers of the member countries.
- APEC functions by consensus.
- APEC has a business advisory council consisting of up to three senior business people from each member economy to provide advice on APEC action plans and conduct of specific business and priorities in the private sector.
- APEC's goal is to achieve free and open trade and investment in the Asia-Pacific region by 2010 for developed member economies and by 2020 for the developing economies.

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APEC's objectives are as follows:

- Managing globalisation through economic and technical cooperation and through participating in international forums;
- An Action Agenda for the new economy, focusing on an e-commerce readiness assessment, Paperless trading, and capacity building for both people and institutions;
- Ensuring individuals from rural and urban communities alike who have access to the Internet by 2010, Including a pledge to triple the number of people with such access by 2025;
- Strengthening the multilateral trading system through a new WTO round.

APEC's e-commerce steering group is working currently on the following:

- A Digital Divide Blueprint for action to address issues of the digital divide and reliable, affordable access to the information infrastructure;
- Paperless trading;
- A review of the 2000 APEC Action plan to support the use of e-commerce by SMEs;
- Development of APEC voluntary online consumer protection principles;
- Development of policy regarding the creation of an environment conducting to e-learning; and
- Reviewing and updating the 1998 APEC Blueprint for Action on Electronic Commerce.

Some Important Agencies In The US Connected With E-commerce Law and Policy

The US has been a leader in the steady growth of e-commerce laws and policies for the development of e-commerce and cyberspace.

Important roles and policies in E-commerce:

- The department of commerce in the US has played a crucial role over the internet's infrastructure and developing proper legal system for domain name and the development of policies of e-commerce.
- The US federal Trade have concerned to secure secrecy, confidentiality and privacy in the e-commerce.
- The department of justice has played pivotal role to administer and enforce the US competition Law and Policy.
- Us state department plays a very significant role by sending the US delegations at the Hague Conference in order to negotiate and draft multilateral treaties, conventions in the different fields of private international law.
- The US Federal communications commission is devoted to the proper regulation of communications infrastructure for the development of e-commerce and business transactions.
- Similarly, the American Bar association have developed many policy documents for the proper enactment of the issues of jurisdiction, privacy, and effective and proper development of e-commerce law.
- Moreover, the US national conference of commissioners on uniform state law has been instrumental in drafting the uniform electronic transaction Act, 1999. The US Uniform Electronic Transaction Act is based on the UNCITRAL Model Law on Electronic Commerce.

Internet Law and Policy Forum

The ILPF which was established in the year 1995 is an important international non-profit organisation of many major internet oriented companies like, Verisign, Microsoft, BCE, Fujitsu, and Deutsche Telekom.

These forum of companies is dedicated to promote the global growth of e-commerce and communications.

It's works for various issues through many working groups consisting of representative from member organisations.

Presently ILPF is working through a working group on

- The jurisdiction of the internet;
- Electronic Authentication which is concerned with the proper certifying authority and on the reliable and authentic digital signature;
- The content regulation of e-commerce transactions and the liabilities of intermediary parties;
- The self regulation of CAs and subscribers.

International Chamber Of Commerce

- The ICC is an international world business organization that is concerned and speaks on behalf of enterprises from all business sectors in every part of the world. The ICC is concerned and tries to promote an open and free international trade and investment system in globalized market economy.
- The ICC works closely with its member business companies to develop proper global business codes of conduct.
- The ICC provides many significant and essential services to the member companies which includes the services of the ICC international court of Arbitration which is a very popular and leading arbitral institution in the world.
- The UN after its creation, has granted the ICC an important consultative status at the highest level with the UN and its specialized agencies.
- The ICC has focused and involved itself in many e-commerce and legal issues in several areas.
- The main role of ICC, in which it has involved itself, is in the dispute resolution relating to the e-commerce transactions.
- ICC has adapted itself for e-commerce crucial and leading international trade rules, such as the Incoterms and the Uniform Rules for Documentary Credits (UCP 500).
- The ICC has also been concerned and involved in jurisdiction negotiations, the problem of privacy, and legal and commercial issues of electronic contracting.

Singapore Electronic Transactions Guidelines

The guidelines under the Singapore Electronic Transactions Act, 1998, and are very helpful for establishing the security criteria for the management, systems and operations of certification authorities.

These guidelines, apart from the UNCITRAL Model Law, can be seen a proper source for providing proper security, management, CAs and authentication of digital signatures which may be effectively followed in the world for the proper regulation of e-commerce.

Suspension and revocation information must be published within the time interval specified in the certificate practice statement (CPS) of the CA.

These guidelines provide to protect the integrity, confidentiality and the availability of certification services, data and systems.

Chapter 8: Council of Europe (COE) –Convention on cyber crimes

The Convention on Cybercrime, also known as the Budapest Convention on Cybercrime or the Budapest Convention, is the first international treaty seeking to address Internet and computer crime (cybercrime) by harmonizing national laws, improving investigative techniques, and increasing cooperation among nations.

Convention on Cybercrime, 23.11.2001 at Budapest keeping in view some of the Following objects:

- To achieve a greater unity between its members;
- Recognising the value of fostering co-operation with the other States parties to this Convention;
- Convinced of the need to pursue, as a matter of priority, a common criminal policy aimed at the protection of society against cybercrime, inter alia, by adopting appropriate legislation and fostering international co-operation;
- Conscious of the profound changes brought about by the digitalisation, convergence and continuing globalisation of computer networks;

- Concerned by the risk that computer networks and electronic information may also be used for committing criminal offences and that evidence relating to such offences may be stored and transferred by these networks;
- Recognising the need for co-operation between States and private industry in combating cybercrime and the need to protect legitimate interests in the use and development of information technologies;
- Believing that an effective fight against cybercrime requires increased, rapid and well functioning international co-operation in criminal matters;

Convinced that the present Convention is necessary to deter action directed against the confidentiality, integrity and availability of computer systems, networks and computer data as well as the misuse of such systems, networks and data by providing for the criminalisation of such conduct, as described in this Convention, and the adoption of powers sufficient for effectively combating such criminal offences, by facilitating their detection, investigation and prosecution at both the domestic and international levels and by providing arrangements for fast and reliable international co-operation